

ZAYO GROUP, LLC
EMPLOYEE CONFIDENTIALITY AND INTELLECTUAL PROPERTY AGREEMENT

This Employee Confidentiality and Intellectual Property Agreement ("Agreement" is entered into by Employee in consideration of employment, or continued employment with Zayo Group, LLC, including its current and future parent, subsidiaries, and affiliates (the "Company").

I desire to become an employee of the Company or to continue employment with the Company and recognize that the Company has a vital interest in maintaining its Confidential Information and protecting its Intellectual Property, which fosters the Company's competitive advantage and enhances the value of the Company to its shareholders and my future employment. The Company employs or will employ me on an "at will" basis, terminable by either party at any time with or without cause or notice, and will pay me a salary and provide benefits and other compensation as otherwise agreed by the Company and me.

For this and other good and valuable consideration, the receipt of which Employee acknowledges, Employee agrees as follows:

1. Confidential Information. During the course of employment with the Company, information relating to the Company or to the any subsidiary, affiliate, customer, supplier or vendor of the Company or a third party having a confidential, proprietary or trade secret nature (collectively referred to herein as "Confidential Information" and more particularly described on Exhibit "A" attached hereto) may be disclosed to me, or may be created by me during the course of employment with the Company. I acknowledge that employment with the Company creates a relationship of confidence and trust with respect to Confidential Information, as well as all other aspects of the employment relationship.

At all times during my employment and following the date that my employment terminates for any reason, I will keep all Confidential Information in strict confidence and trust for the sole benefit of the Company and/or third party owners thereof, and I will not directly or indirectly use or disclose any Confidential Information for the benefit of any other person, entity, firm, organization, association or partnership, nor lecture upon or publish articles revealing Confidential Information, without the prior written consent of the Company, except as may be necessary to perform my duties as an employee of the Company or if required by law or court order.

Upon termination of my employment with the Company, for whatever reason, I will promptly deliver to the Company, without limitation, all books, manuals, records, models, drawings, reports, notes, contracts, lists, blueprints, and other documents and materials of any nature pertaining to my work with the Company, and I will not take from the Company any documents, materials, computer storage media, or similar repositories or copies thereof containing any Confidential Information, whether conceived, prepared, developed, or acquired by me or provided by the Company to me.

2. Intellectual Property. The Company is engaged in a continuous program of research, development and marketing in connection with its business and, as an essential part of

employment with the Company, I may participate in and support this activity. I agree to promptly disclose exclusively to the Company all discoveries, concepts, ideas, inventions, improvements, information, original works of authorship, processes, machines, combinations, computer programs, databases, trademarks, service marks and trade secrets, whether or not protectable under patent, copyright, trademark, trade secret or other intellectual property laws, and all related know-how that are made, developed, conceived (even if reduced to practice after termination of my employment), first reduced to practice or created by me, either alone or jointly with others, during my course of employment for whatever reason (collectively referred to herein as "Intellectual Property"). I agree that all Intellectual Property, as defined above, that: (a) is developed using equipment, supplies, facilities, Confidential Information, or personnel of the Company; (b) results from or is suggested by work I may perform for the Company or third parties on behalf of the Company; or (c) relates to the present or future business, work, investigations, technology, research, or development interests of the Company or the communications industry in general, are the sole and exclusive property of the Company. I hereby assign and delegate all right, title and interest therein to the Company.

I agree to perform all acts that the Company may reasonably request to assist the Company in obtaining and enforcing the full benefits, enjoyment, rights, and title, in the United States and throughout the world, in the Company's Intellectual Property. Such acts shall include, without limitation, prompt execution of documents and assistance in the prosecution and/or enforcement of patents, copyrights, trademarks, and trade secrets, or participation in any other legal proceedings. My obligations under this paragraph shall continue beyond the termination of my employment with the Company, provided that the Company will compensate me at the rate of \$100/hr. after such termination for time actually spent by me at the Company's request for such assistance.

In the event that the Company is unable to secure my signature to any lawful document required to apply for or enforce any of the Intellectual Property due to my mental or physical incapacity or unavailability, I hereby irrevocably appoint the Company and its duly authorized officers and agents as my agents and attorneys-in-fact to apply for, execute documents or enforce the Company's Intellectual Property with the same legal force and effect as if executed by me.

With respect to Intellectual Property that qualifies as original works of authorship under the copyright laws (either U.S. or foreign), I acknowledge that such works shall be considered "works-made-for-hire" for the exclusive benefit of the Company, which shall own all right, title and interest in and to such work. Such rights shall include all "moral" rights under any (either U.S. or foreign) copyright or other similar law for such works, including but not limited to rights to identification of authorship, rights to cause or suppress publication, or rights of approval or limitations on subsequent modifications.

I represent that except for the specific Intellectual Property disclosed in Exhibit "B" attached hereto; there is no Intellectual Property that I wish to exclude from the operation of this Agreement. If I make such disclosures on Exhibit "B," I acknowledge that the Company has the right to review them and reject them if it disagrees with such exclusions.

3. Other Agreements. I represent that performance of my duties as an employee of the Company and compliance with the terms of this Agreement will not breach any similar commitment or confidentiality agreement with any former employer or other party. I represent that I will not bring to the Company, use in the performance of my duties for the Company, or induce the Company to use any documents or materials of a former employer that are so restricted.

4. Successors. This Agreement shall inure to the benefit of the Company and its successors and assigns, and shall be binding upon my heirs, executors, administrators, or other legal representatives or assigns.

5. Prior work. I hereby agree that my obligations set forth herein, and the definitions of Confidential Information and Intellectual Property contained herein shall equally be applicable to Confidential Information and Intellectual Property relating to any work performed by me for the Company prior to execution of this Agreement.

I acknowledge that I have carefully read this Employee Confidentiality and Intellectual Property Agreement, understand its terms, and that I have entered into this Agreement voluntarily and not in reliance upon any promise or representations by the Company other than those contained herein.

Employee Signature

Employee Name

Date

EXHIBIT “A”

Confidential Information, as used herein, shall further include in whatever form, intangible or tangible, and without limitation, the following:

(A) Technical information, including without limitation, computer software (source code, object code and executables), algorithms, processing systems, techniques, ideas, discoveries, inventions, developments and know-how, including information conceived, originated, discovered or developed by me either alone or jointly with others;

(B) Business information, including without limitation, information relating to costs, pricing, profit margins, markets, suppliers, business plans and projections, budgets, financing, account and legal regulatory data, names, addresses and phone numbers of employees, names, addresses and phone numbers of current or prospective business customers and their respective service or product requirements, credit history and trade names, as well as the Company's and its affiliates' prospective sales, marketing and advertising plans, right-of-way plans and agreements,, prospective or actual regulatory strategies, prospective or actual building plans, leases or access agreements, licenses or similar agreements, prospective or actual local government franchises, licenses or similar permissions to use public ways or other commercial information, prospective or actual mergers and acquisitions and prospective or actual capitalization of the Company, including without limitation, information conceived, originated, discovered, or developed by me either alone or jointly with others; and

(C) Technical and/or business information furnished by third parties, including the Company's prospects, customers, suppliers, licensors, franchisors or vendors to the full extent that the contracts or other agreements with these third parties so specify.

(D) Personal Information: Any data that uniquely identifies a former, current or prospective employee-owner or customer, including but not limited to name, home address, home phone, national personal identifier or social security number.

(E) Sensitive Personal Information includes, but is not limited to:
The racial or ethnic origin of the data subject, Political opinions, The religious beliefs or other beliefs of a similar nature, Whether he/she is a member of a trade union (within the meaning of the Trade Union and Labor Relations (Consolidation) Act 1992), The physical or mental health or condition, · His/her sexual orientation, · The commission or alleged commission by him/her of any offence · Any proceedings for any offense committed or alleged to have been committed by him/her, the disposal of such proceedings or the sentence of any court in such proceedings (EU Directive 1998).

EXHIBIT “B”

EMPLOYEE'S DISCLOSURE

With the exception of the Intellectual Property set forth below, I represent there is no Intellectual Property that I propose to exclude from the operation of this Agreement.